

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

191 North First Street, San Jose, CA 95113

Telephone: 408.882.2270

Department16@scscourt.org

LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: FRIDAY JUNE 13, 2025

TIME: 9:00 A.M.

Please Read Carefully As Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed, or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: **Line #/name/party**. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are On The Following Pages.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV371434	CBS FINANCE INC vs STEPHEN COOPER et al	Order of Examination of Defendant Bryan Holmes; No Tentative Ruling.

LINE #	CASE #	CASE TITLE	RULING
LINE 2	23CV410704	Mehryar Mogharrab vs Logan Rand Jennings, et al. Trial Date: 10/20/2025	The motion of Cross-Defendant Leland Stanford Junior University (“Stanford”) for Judgment on the Pleadings (filed March 18, 2025) is GRANTED. The Cross-Complaint of Defendant and Cross-Complainant Logan Rand Jennings is dismissed with prejudice as to Cross-Defendant Stanford, and Stanford shall be entitled to recover its costs of suit. See Tentative Ruling below for details. Counsel for Moving Party to prepare Order and Judgment of Dismissal.

LINE #	CASE #	CASE TITLE	RULING
LINE 3	23CV424739	JPMorgan Chase Bank, N.A. vs ABHISEK ROY (Also set for further CMC at 10:00 a.m.)	On October 20, 2023, Plaintiff JPMorgan Chase Bank (“Chase”) sued to collect a credit card debt from Abhishek Roy. Thereafter, on October 31, 2024, Defendant and Cross-Complainant Abhishek Roy and Cross-Complainant Debasish Roy filed a Cross-Complaint against Plaintiff and numerous others alleging breach of contract and negligence against Chase, and unjust enrichment against the other “non-banking” Defendants. Cross-Complainants allege that Chase “allowed” the non-banking Cross-Defendants to defraud Cross-Complainants. On December 5, 2024, Chase filed the demurrer pending before the Court, asserting that both causes of action asserted against it in the Cross-Complaint fail as there was no contractual or legal duty to affirmatively protect Cross-Complainants from transactions with third-parties. No opposition to the demurrer was filed by either Cross-Complainant. On June 9, 2025 Cross-Complainant Debasish Roy filed a request to dismiss the Cross-Complaint as to Chase only, which dismissal was entered. Accordingly there being no opposition thereto, the demurrer of Chase to the First Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND and shall be dismissed as to Chase with prejudice. Moving Party to prepare the Order.
LINE 4	24CV441001	RONALD PATRICK vs BRIAN GARCIA et al	Defendants’ Demurrer to the Second Amended Complaint is OVERRULED. See Consolidated Tentative Ruling below. Defendants shall have twenty (20) days leave to Answer. Court to prepare the order.

LINE #	CASE #	CASE TITLE	RULING
LINE 5	24CV441001	RONALD PATRICK vs BRIAN GARCIA et al	Defendants’ Motion to Strike is GRANTED with regard to the allegations of treble damages, and DENIED with regard to the allegations of attorneys fees. See Consolidated Tentative Ruling under Line 4 below.
LINE 6	23CV427209	Trang Vu vs Macy's Valleyfair Mall et al	Defendant Macy’s Retail Holdings LLC’s motion filed on December 5, 2024 to compel arbitration as to all issues and claims raised in this action and staying all proceedings pending the completion of arbitration is GRANTED, and the matter is stayed during the pendency of the arbitration. See Tentative Ruling below. Moving Party to prepare the Order. Matter is set for Arbitration Status Review on December 19, 2025 at 10 a.m. in Department 16, to confirm that the arbitration process is moving forward and obtain an anticipated schedule for the arbitration. All other pending court dates in this matter are vacated in view of the stay.

LINE #	CASE #	CASE TITLE	RULING
LINE 7	22CV404706	Roma Gandhi vs Cedar Fair, LP et al Trial Date: 7/21/2025	Consistent with the Order made by the Court on January 8, 2025 that Plaintiff shall not introduce evidence of or argue current or future cognitive impairment as a basis for recovery in this action, Defendant's Motion for an Order Compelling Plaintiff Roma Gandhi to submit to a neuropsychological evaluation by Defendant's expert Dr. Silva, which includes psychological testing, is DENIED. Plaintiff shall, however, participate in a clinical interview by Dr. Silva for the purposes of ascertaining the existence and duration of past cognitive injury, which interview shall not include any testing of Plaintiff for purposes of or that have the effect of assessing current or future cognitive impairment. Counsel shall cooperate to schedule such clinical interview to occur not later than June 30, 2025, unless otherwise mutually agreed by the Parties. The interview may occur by way of videoconferencing. It is not disputed that the injuries for which Plaintiff sues occurred on October 20, 2017, that Plaintiff admits that any symptoms of psychological impairment from the incident were gone within a year. Defendant has not demonstrated that any psychological testing currently conducted would be relevant to establishing cognitive injury in 2017-2018. Defendant's argument that it is necessary to establish a "baseline" is not persuasive, as claims based on current and future cognitive injury have been excluded. Moving Party to prepare order.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV432994	Juan Gutierrez Chavez vs Matthew Lopes et al	Plaintiff commenced this action on March 3, 2024 seeking damages resulting from alleged negligence that caused a motor vehicle accident. On November 21, 2024, Plaintiff's counsel failed to appear for the Case Management Conference in this matter. Accordingly the Court ordered that the matter be set for hearing on order to show cause re dismissal on February 7, 2025 at 10 a.m. Notice of the February 7 court date was mailed by the Clerk's office to Plaintiff's attorney on January 8, 2025. As Plaintiff's counsel again failed to appear in Court on February 7, 2025 and no declaration of good cause to excuse the failures to appear on November 21, 2024 or February 7, 2025 was filed, the matter was dismissed by order signed February 21, 2025.. The declarations filed by Plaintiffs's counsel do not explain why there was no appearance for Plaintiff in November 21, 2024. Further it appears that prior to February 7, 2025, new counsel for Plaintiff was actively working on the matter. Also there is no explanation for why the written notice sent on January 8, 2025 was apparently ignored. This is a troubling pattern of neglect which has not been satisfactorily explained. However, the Plaintiff should not be penalized for the actions or inactions of his counsel. Accordingly, Plaintiff's counsel is hereby admonished. The dismissal of the action is vacated. Plaintiff's counsel (not Plaintiff) is ordered within 10 days to pay \$1,000 to the State Bar Client Security Fund. Case status review is set for August 29, 2025 at 10 a.m. in Dept. 16. Counsel of record for Plaintiff (not special appearance counsel) shall appear.

LINE #	CASE #	CASE TITLE	RULING
LINE 9	24CV442012	DM LOGIC ASSOCIATES CORP INC vs IDC TECHNOLOGIES, INC. (Also set for Case Status Review at 10:00 a.m.)	Motion to Withdraw by Defendant's Counsel, continued to July 11, 2025 at 9 am. In Department 16 per order signed and filed on May 15, 2025. No further notice required. Case Status Review set for 10 a.m. on June 16, 2025 is also continued to 10 a.m. on July 11, 2025. Notice of continued Case Status Review to be given by the Court.
LINE 10	24CV447029	Camilo Perez et al vs Santiago Beltran et al (Also set for Case Status Review at 10:00 a.m.)	Motion of Plaintiff and GAL's attorney to withdraw was previously set for October 3, 2025 and advanced by order of the Court on April 9, 2025 to June 13, 2025. No Proof of Service of the advanced hearing date is in the Court file. In the absence of Proof of Service that was made at least 16 court days prior to the hearing, this matter will be continued to October 3, 2025 – the date for which notice has previously been given and Plaintiff's counsel is ordered to provide notice of the continued date. Provided there was adequate notice of the 6/13/2025 hearing, then the motion to withdraw is granted effective as of service of the order, which includes the next case status review date.
LINE 11	24CV449981	Julia Caguenas Lozada et al vs Becky Elliot et al (Also set for Case Status Review at 10:00 a.m.)	Motion of Plaintiffs attorney to withdraw is GRANTED effective as of service of the order, which includes the next case status review date.
LINE 12	24CV449981	Julia Caguenas Lozada et al vs Becky Elliot et al (Also set for Case Status Review at 10:00 a.m.)	Motion of Plaintiffs attorney to withdraw is GRANTED effective as of service of the order, which includes the next case status review date

LINE #	CASE #	CASE TITLE	RULING
LINE 13	22CV401459	Bank Of America, N.A. vs Jorge Acosta	Motion of Plaintiff to set aside dismissal of the action filed 2/21/2024 and to enter Judgment for the unpaid balance pursuant to the written Stipulation for Entry of Judgment filed 2/6/2024 is GRANTED. As established in the Declaration filed on January 2, 2025, Judgment shall be entered in favor of Plaintiff and against Defendant Jorge Acosta only in the amount of \$4,700.78.
LINE 14	21CH010234	Koshy George vs Eric Hartman	Motion re Fees and Costs following appeal; Reassigned from Dept. 4; re-noticed by moving Party to 7/22/2025 which date is NOT a law and motion hearing date in this Department. The next available hearing date in Department 16 is July 25, 2025 at 9 a.m. and the matter is continued to that date and time. If that date is not acceptable, then counsel for both parties are ordered to appear and the Court will continue the matter to the next mutually agreeable date on the Court's calendar.
LINE 15			
LINE 16			

Calendar Line 1

- oo0oo -

Calendar Line 2

Case Name: *Mehryar Mogharab v Logan Rand Jennings, et al*

Case No.: 23CV410704

The Motion of Cross-Defendant Leland Stanford Junior University (“Stanford”) for Judgment on the Pleadings (filed March 18, 2025) is GRANTED.

Background Facts

On May 5, 2021, Defendant Logan Ran Jennings (“Defendant” or “Defendant/Cross Complainant”) was riding his bicycle and collided with Plaintiff Mehryar Mogharab (“Plaintiff”) who was a pedestrian at the time. On January 31, 2023, Plaintiff sued Defendant for negligence, seeking damages for the personal injuries he suffered in the collision with Defendant.

On April 13, 2023, Defendant presented a claim under the Government Tort Claims Act (“GTCA”) against the County of Santa Clara (“County”) for personal injuries that he sustained in the bicycle accident with Plaintiff. Defendant alleged in his Claim that the County was liable pursuant to Govt. Code 835 (dangerous condition) and that Plaintiff, an employee of the State Department of Transportation (“DOT”), was involved in the injury to Defendant. That same day, Defendant presented a GTCA claim against DOT, also for personal injuries and property damage related to the accident of May 5, 2021, asserting that the DOT was responsible for the injuries caused to Defendant by Plaintiff Mogharab, who he alleged was acting as an employee of the California Department of Transportation at the time of the accident.

On April 14, 2023, Defendant filed a cross-complaint against the County, DOT, Plaintiff and Stanford, alleging causes of action against all cross-defendants for implied equitable indemnity, comparative contribution, equitable indemnity, declarative relief, and personal injury. On May 7, 2024, following its denial of Defendant’s petition to be relieved of the requirements of the GTCA, and based on the clear untimeliness of Defendant’s attempts to comply with the GTCA, the Court dismissed with prejudice the Cross-Complaint as against the County and DOT, with prejudice.

On January 28, 2025, at the request of Defendant/Cross-Complainant, the Court dismissed the Fifth Cause of Action for Personal Injury against Plaintiff and Stanford.

On March 18, 2025, Stanford filed and served the current Motion for Judgment on the Pleadings pursuant to Code of Civil Procedure § 438 as to the entirety of the Cross-Complaint filed by Defendant/Cross-Complainant and to each cause of action therein. Stanford’s motion is based on the failure of Defendant to state facts which constitute a cause of action against Stanford.

Relevant Law

Code of Civil Procedure §438 provides that the Court may grant judgment on the pleadings for a defendant where the complaint does not state facts sufficient to constitute a cause of action against that defendant.

The Cross-Complaint does not State Facts Sufficient to Constitute a Cause of Action against Cross-Defendant Stanford.

Defendant/Cross-Complainant's claims rest on the premise that Stanford was negligent and owes a duty of care to Defendant or Plaintiff. "The elements of a cause of action for negligence are well established. They are "(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.'" (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

The Cross-Complaint does not establish that Stanford has any legal duty of due care to Plaintiff or to Defendant. It is well-established under California law that a landowner does not have a duty to maintain in a safe condition, a public street or sidewalk abutting upon its property. (*Sexton v. Brooks* (1952) 39 Cal.2d 153, 157), or to warn travelers of a dangerous condition not created by it, but known to it and not to such travelers (37 Cal.Jur.3d, Highways and Streets, § 70, pp. 178-179). In *Seaber v. Hotel Del Coronado* (1991) Cal.App.4th 481, the Court found that the defendant resort did not have an exclusive "special benefit" and the resort's request to reinstall a previously removed crosswalk adjacent to their resort was not "the equivalent of control". *Id.* at 491-92.

Similarly, Stanford did not own or maintain the road where the incident occurred. The Cross-Complaint merely includes the conclusory allegation that Stanford was "integrally involved in the construction of the area." Similar to *Seaber*, the Cross-Complaint does not alleged Stanford's exercise of control over the area or that Stanford derived some exclusive special benefit from the road or bike lane where the accident occurred. As Stanford had no exercise of control over the road or the bicycle lane, this extinguishes whatever duty Stanford may have to warn pedestrians.

In the absence of any legal obligation to maintain or warn against the conditions of the public road or bike lane where Defendant and Plaintiff were injured, Stanford cannot be found negligent, and any claim for comparative contribution, equitable indemnity, or declaration stating the Plaintiff entitled to such relief against Stanford cannot be found.

In opposition to Stanford's motion, Defendant/Cross-Complainant argues that adjacent landowners generally have a duty to maintain their property reasonably, avoiding actions that unreasonably interfere with the rights of neighboring landowners and potentially causing harm. However, the Cross-Complaint does not allege action taken by Stanford that purportedly caused the accident involving Plaintiff and Defendant. Defendant/Cross-Complainant relies on the responsibility that adjacent landowners have for sidewalks adjacent to their property and for ensuring their property doesn't create dangerous conditions on public landowners (e.g. maintenance of trees with roots or branches that cause tripping hazards or obstruct visibility), citing California Streets and Highway Code Section 5610. Defendant/Cross-Complainant provides no evidence or factual basis for finding that Stanford created a hazardous condition in

the public bike lane. Defendant/Cross-Complainant in fact concedes in his opposition that the road and bike lane where the subject incident occurred were owned by Santa Clara County, with no extension towards the sidewalk adjacent to Stanford's land.

Accordingly, Stanford's motion for judgment on the pleadings is GRANTED with regard to all causes of action in the Cross-Complaint. Stanford shall have Judgment in its favor on the Cross-Complaint.

- oo0oo -

Calendar Line 3

- oo0oo -

Calendar Line 4

Consolidated Tentative Ruling for Lines 4-5
Calendar Lines 4-5

Case Name: *Patrick v. The Davey Tree Surgery Co., et al.*
Case No.: 24CV441001

This is an action concerning the attempted removal of a California Fan Palm tree. According to the allegations of the second amended complaint ("SAC"), on December 21, 2022, at 8:25 a.m., plaintiff Ronald Patrick ("Plaintiff") was at home observing footage from the security camera at the his commercial property at 5191 Lafayette Street in Santa Clara ("subject property") when he noticed a truck in the front parking lot belonging to defendant The Davey Tree Surgery Company ("Davey Tree"), as well as three Davey Tree employees, including defendant Brian Garcia ("Garcia"). (See SAC, ¶¶ 14-15.) Disturbed that he had not given anyone permission to be on his property, Plaintiff contacted Davey Tree to let them know that he had not ordered any tree trimming and did not want Davey Tree's employees on the property since his own employees were to arrive. (See SAC, ¶ 16.) Davey Tree's District Manager, Ken Cuddihy, responded that he would go to the subject property and look into what was going on. (See SAC, ¶ 19.) Immediately after the phone call with Mr. Cuddihy, Plaintiff saw on the security camera that a Davey Tree employee was speaking with someone on a cellular phone, but that rather than leave, the Davey Tree employees began setting up their truck and crane to kill the California Fan Palm tree ("Fan Palm") on the property. (See SAC, ¶ 20.) Plaintiff then drove to the subject property; however, when he arrived one of the Davey Tree representatives was already up on the crane, cutting the Fan Palm at the central bud (meristematic bud). (See SAC, ¶ 21.) Plaintiff then identified himself as the property owner and told the Davey Tree employees to stop work and leave; however, they refused. (See SAC, ¶ 22.) Based on the physical observations of Plaintiff, the Davey Tree employees should have known that Plaintiff was a senior citizen. (*Id.*) Plaintiff again stated that he did not want any work done on the Fan Palm and that he wanted Davey Tree off his property, but the Davey

Tree employees continued work for 10 minutes before leaving. (See SAC, ¶ 25.) Davey Tree's alterations to the Fan Palm caused palm branches to land on the roof of the building on the subject property, damaging the roof, and also will eventually kill the tree. (See SAC, ¶¶ 26-28.) The cost of replacement of a Fan Palm is \$56,872 and the cost of removing the existing Fan Palm is \$3,000. (See SAC, ¶ 29.)

On January 2, 2025, Plaintiff filed the SAC against defendants Davey Tree and Garcia (collectively, "Defendants"), asserting causes of action for:

- 1) Elder abuse in violation of Welfare and Institutions Code sections 15600, et seq.; and,
- 2) Trespass to timber.

Defendants demur to the first cause of action of the SAC for elder abuse and move to strike certain allegations of the SAC.

I. DEFENDANTS' DEMURRER TO THE FIRST CAUSE OF ACTION FOR ELDER ABUSE

Plaintiff's request for judicial notice in opposition

In support of his opposition to the demurrer, Plaintiff requests judicial notice of the following:

- The December 18, 2024 order re: Defendants' demurrer to the FAC and motion to strike portions of the FAC (attached as Exhibit A);
- The transcript of the proceedings from the December 12, 2024 hearing on the demurrer and motion to strike (attached as Exhibit B);
- Davey Tree's notice of demurrer and demurrer to the FAC (attached as Exhibit C);
- Plaintiff's opposition to the demurrer to the FAC (attached as Exhibit D); and,
- Davey Tree's reply brief in support of the demurrer to the FAC (attached as Exhibit E).

The request for judicial notice is GRANTED as to the December 18, 2024 order. (Evid. Code § 452, subd. (d).)

The request for judicial notice of the transcript of the proceedings from the December 12, 2024 hearing on the demurrer and motion to strike is not opposed. The reporter has certified its truth and correctness. The request for judicial notice of the transcript of the hearing is GRANTED as it is not reasonably the subject of any dispute. (Evid. Code § 452, subd. (h).)

The request for judicial notice is GRANTED as to the *existence* of the notice of demurrer and demurrer to the FAC, the opposition to the demurrer and reply brief. (See Evid. Code § 452, subd. (d); see also *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 (stating that "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached,

they may not take judicial notice of the truth of hearsay statements in decisions and court files”); see also *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 (stating that “[t]here exists a mistaken notion that this means taking judicial notice of the existence of facts asserted in every document of a court file, including pleadings and affidavits... [h]owever, a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file... [a] court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments”).)

Defendants’ demurrer to the first cause of action for financial elder abuse

Defendants argue that the SAC fails to allege facts demonstrating that they took, secreted, obtained or retained Plaintiff’s property for wrongful use or with an intent to defraud because “[t]he SAC on its face establishes that it is impossible for Patrick to prove either Defendants had knowledge that he was elderly since he admits that he as at another location viewing the activities by video... [and] he cannot amend to show that Defendants would have had any such knowledge given that the Lafayette Street Property was a boarded-up commercial property.” (Defs.’ memorandum of points and authorities in support of demurrer to first cause of action (“Defs.’ demurrer memo”), pp.4:23-28, 5:1-2.)

Defendants contend that he cannot allege elder abuse because “the damage to the Fan Palm was, according to Patrick’s admissions, done by the time Patrick got there... [and] the SAC does not allege that Patrick showed any form of identification with his date of birth... [r]ather, the SAC merely alleges that Defendants knew or should have known that Patrick was a senior citizen based merely on Defendants’ physical observations of Patrick.” (*Id.* at p.5:8-21.) Defendants rely on Welfare and Institutions Code section 15610.30, subdivision (b) which states that “[a] person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.” (Welf. & Inst. Code § 15610.30, subd. (b).) However, this subdivision states that the requisite knowledge is directed to the likelihood of harm, not whether the adult is perceived to be an elder or dependent adult. “Elder” is defined by the statute as “any person residing in this state, 65 years of age or older.” (Welf. & Inst. Code § 15610.27.) The SAC alleges that after Plaintiff identified himself as the owner of the property, Defendants continued to work for 10 minutes on the Fan Palm after initially cutting the central bud, and that Plaintiff was an elder as defined by the statute. These are facts that demonstrate that Defendants knew or should have known that their conduct was likely to be harmful to the elder, Plaintiff.

Defendants also assert that “[d]amage to a tree at a commercial property is not the type of ‘taking’ or act that is protected by the Financial Elder Abuse statute.” (Defs.’ demurrer memo, p.6:3-4.) While Defendants are correct that damage to a tree was likely not contemplated by the Legislature in drafting section 15610.30, “property” is broad enough to encompass a tree. Defendants cite several cases to support their belief that “the true purpose of the statute is to deal with forms of financial agreements” (*id.* at pp.6:15-28, 7:1-14); however, none of those cases preclude a tree as “property” under the statute.

Defendants also argue that “it is devoid of any allegations establishing that Defendants took, secreted, obtained or retained Plaintiff’s property, namely the Subject Tree: 1) for a

wrongful use; or 2) with the intent defraud Patrick; or both, which are required elements of Patrick's Financial Elder Abuse cause of action." (Defs.' demurrer memo, p.7:19-28, 8:1-28, 9:1-20.) Defendants contend that because they "did not take or misappropriate any funds from Patrick or any contractual rights from Patrick... did not take, obtain or retain the Subject Tree for their own use or for the use of others... [t]here are no facts of improper conduct, subjective bad faith or other wrongful conduct." (*Id.* at p.9:7-11.) "As discussed above, there was no possible way that Defendants knew or could have known that the cutting of the Subject Tree as likely to be harmful to the elder Patrick." (*Id.* at p.9:12-20.) However, the SAC alleges that Plaintiff informed Defendants that he was the owner of the property and demanded that they cease work, but that Defendants ignored his pleas and continued to cut into the Fan Palm. As a company and agents of a "Tree Surgery" company, they knew or should have known that their actions would cause serious harm to the tree, and that the Fan Palm ultimately would die. While Defendants did not retain the Fan Palm, they did allegedly deprive Plaintiff of its use, over his objections. The Court is not persuaded that the intentional destruction of another's property does not constitute wrongful use under the Elder Abuse statute.

Lastly, Defendants argue that the SAC does not allege the taking, secreting, appropriating, obtaining, or retaining of real or personal property of an elder with an intent to defraud. (See Defs.' demurrer memo, p.9:22-25.) However, as indicated by section 15610.30, subdivision (a)(2), the taking of property may be a violation if it is **either** "for a wrongful use **or** with intent to defraud, or both." (Welf. & Inst. Code §15610.30, subd. (a)(2) (emphasis added).) As the SAC alleges a wrongful use, it is not necessary for Plaintiff to allege an intent to defraud.

Accordingly, Defendants' demurrer to the first cause of action is OVERRULED.

II. DEFENDANTS' MOTION TO STRIKE PORTIONS OF THE SAC

Defendants also move to strike allegations supporting attorney's fees and treble damages.

Plaintiff's request for judicial notice

In support of his opposition, Plaintiff requests judicial notice of the following:

- The December 18, 2024 order (attached as Exhibit A);
- Judicial Council of California and Mosqueda, Elder Abuse Pocket Reference: A Medical/Legal Resource for California Judicial Officers (2012) (attached as Exhibit B); and,
- Defendants' notice of motion to strike portions of Plaintiff's first amended complaint (attached as Exhibit C).

The request for judicial notice is GRANTED as to the December 18, 2024 order. (Evid. Code § 452, subd. (d).)

The request for judicial notice is DENIED as to the pamphlet as it is not a proper subject for judicial notice.

The request for judicial notice is GRANTED as to the *existence* of the notice of motion to strike portions of the FAC. (See Evid. Code § 452, subd. (d); see also *Lockley v. Law Office of*

Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 (stating that “while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files”); see also *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 (stating that “[t]here exists a mistaken notion that this means taking judicial notice of the existence of facts asserted in every document of a court file, including pleadings and affidavits... [h]owever, a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file... [a] court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments”).)

Attorney’s fees

Defendants argue that Plaintiff is not entitled to attorney’s fees because his cause of action for financial elder abuse lacks merit. It may be that Plaintiff will not prevail on his financial elder abuse cause of action at trial, and he will not be entitled to attorney’s fees. However, for reasons stated above, the first cause of action adequately alleges facts supporting a cause of action for financial elder abuse. Thus, Defendants’ motion to strike the allegations supporting a request for attorney’s fees is DENIED.

Treble damages

Defendants also seek to strike allegations in paragraphs 56, 63, 64 and paragraph 4 of the prayer supporting treble damages pursuant to Civil Code section 3345. Section 3345, subdivision (b) states:

Whenever a trier of fact is authorized by a statute to impose either a fine, or a civil penalty or other penalty, or any other remedy the purpose or effect of which is to punish or deter, and the amount of the fine, penalty, or other remedy is subject to the trier of fact’s discretion, the trier of fact shall consider the factors set forth in paragraphs (1) to (3), inclusive, in addition to other appropriate factors, in determining the amount of fine, civil penalty or other penalty, or other remedy to impose. Whenever the trier of fact makes an affirmative finding in regard to one or more of the factors set forth in paragraphs (1) to (3), inclusive, it may impose a fine, civil penalty or other penalty, or other remedy in an amount up to three times greater than authorized by the statute, or, where the statute does not authorize a specific amount, up to three times greater than the amount the trier of fact would impose in the absence of that affirmative finding.

- (1) Whether the defendant knew or should have known that their conduct was directed to one or more senior citizens, disabled persons, or veterans.
- (2) Whether the defendant’s conduct caused one or more senior citizens, disabled persons, or veterans to suffer: loss or encumbrance of a primary residence, principal employment, or source of income; substantial loss of property set aside for retirement, or for personal or family care and maintenance; or substantial loss of payments received under a pension or

retirement plan or a government benefits program, or assets essential to the health or welfare of the senior citizen, disabled person, or veteran.

(3) Whether one or more senior citizens, disabled persons, or veterans are substantially more vulnerable than other members of the public to the defendant's conduct because of age, poor health or infirmity, impaired understanding, restricted mobility, or disability, and actually suffered substantial physical, emotional, or economic damage resulting from the defendant's conduct.

(Civ. Code § 3345.)

Previously, the Court [Hon. Rosen] granted the Defendants' motion to strike these allegations from the first amended complaint, stating:

The Court is persuaded by Davey Tree's argument that the FAC is devoid of allegations to support the above three factors. (Motion, p. 9: 6-7.) In particular, there are no allegations that anyone involved in the cutting of the Fan Palm knew Plaintiff's age or that the conduct caused Plaintiff to lose the specified items listed in subdivision (2) or that Plaintiff is more vulnerable than other members of the public because of his age. Accordingly, Plaintiff fails to allege he is entitled to treble damages pursuant to Civil Code section 3345.

(December 18, 2024 Order re: Defs.' demurrer to the FAC and motion to strike portions of the FAC, p.11:13-18.)

Relying on the prior order, Defendants argue that "as the Court noted in ruling on the Motion to Strike Patrick's FAC, the SAC is devoid of any specific facts necessary to satisfy subdivision (b)(1)-(3) of Cal. Civ. Code § 3345." (Defs.' memorandum of points and authorities in support of motion to strike portions of SAC, p.3-27.) However, Defendants do not address the new allegation that "Defendants knew or should have known that their conduct was directed at a senior citizen." (SAC, ¶ 56; see also SAC, ¶ 64 (alleging same).) Plaintiff alleges that "[b]ased on their physical observations of Ronald Patrick, DAVEY TREE's representatives knew or should have known that Ronald Patrick was a senior citizen." (SAC, ¶ 22.)

However, there is a "general rule that statutory causes of action must be pleaded with particularity." (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) Plaintiff seeks a statutory remedy, but it is entirely unclear how Defendants knew or should have known that Plaintiff was a senior citizen "based on their physical observations." The interactions alleged between Plaintiff and Defendants are alleged to be brief: Plaintiff identified himself as the property owner and told Defendants to cease work and leave, but they refused (see SAC, ¶ 22), Plaintiff asked a representative for a phone number of a supervisor but was told that no supervisor was available (see SAC, ¶ 23), Plaintiff asked who had ordered the job and was handed a piece of paper that stated that the subject property had ordered to "kill palm tree in front of business" (see SAC, ¶ 24) and Plaintiff again stated that he did not want any work done on the Fan Palma and wanted Davey Tree off his property (see SAC, ¶ 25). None of these interactions—primarily verbal—would indicate any physical observations demonstrating or suggesting that Plaintiff was 65 years or older.

Defendants’ motion to strike paragraphs 56, the word “treble” from paragraph 63, line 17 on page 12, paragraph 64, and paragraph 4 from the prayer of the SAC is GRANTED with 10 days leave to amend.

The Court will prepare the Order.

- oo0oo -

- oo0oo -

Calendar Line 5

Calendar Line 6

Case Name: *Trang Vu v Macy’s ValleyFair Mall et al*
Case No.: 23CV427207

Defendant Macy’s Retail Holdings, LLC’s (“Defendant”) motion to compel arbitration pursuant to the Solutions inSTORE Program and the binding arbitration agreement signed by Plaintiff, as to all issues and claims raised in this action, is GRANTED.

As established by the declarations filed with the Court, in February 2023, Plaintiff Trang Vu (“Plaintiff”) commenced employment with Defendant Macy’s Retail Holdings, LLC, working at the Macy’s retail store located in the Valley Fair shopping mall. Her employment was involuntarily terminated on June 28, 2023.

On December 8, 2023, Plaintiff filed her Complaint with this Court. It identifies no separate causes of action and does not identify any legal theories of liability. It is a handwritten statement by Plaintiff asserting that she was not paid for the correct hours that she worked, was not paid for all hours that she worked, that there were errors on her paycheck, that she was not paid for “paid leave” time, and that after she attempted to address these issues with her supervisors and HR, she was fired from her work in June 2023. These allegations fall within the definition of “employment related claims” covered by the Parties’ agreement. Plaintiff filed her Complaint as a self-represented litigant solely on behalf of herself and correctly names only one Defendant – as the other two purported Defendants are not separate legal entities. Plaintiff makes no allegations that would qualify this matter as “complex civil litigation” nor does she allege that this is a “class action” either factually or procedurally. As a self-represented litigant, Plaintiff cannot represent anyone other than herself, much less prosecute a “class action”.

In its answer to the Complaint, filed June 5, 2024, Defendant alleged as its first affirmative defense the existence of a written binding arbitration agreement. As evidenced by Plaintiff’s statements filed with the Court on October 28, 2024 (prior to the filing of this motion) and on March 12, 2025, Plaintiff acknowledged that she had signed an alternative dispute resolution

agreement in connection with her hire at Macy's, and that after filing this lawsuit and before bringing this motion, Defendant had attempted to obtain her voluntary participation in the fourth stage of the inStore Solutions process – binding arbitration.

Defendant has demonstrated, and Plaintiff cannot credibly dispute that she signed a written agreement for binding arbitration of any employment related disputes. That written agreement provided for a "30 day opt out" which was not exercised by Plaintiff who accepted employment subject to the terms of the agreement. The arbitration agreement meets the legal requirements for enforceability established under California and Federal law.

Accordingly, Defendant's motion to compel binding arbitration as to all claims alleged by Plaintiff is GRANTED, and this action is stayed pending completion of the arbitration.

Moving Party to prepare the Order.

- 00000 -

Calendar Line 7

- 00000 -

Calendar Line 8

- 00000 -

Calendar Line 9

- 00000 -

Calendar Line 10

- 00000 -

Calendar Line 11

- 00000 -

Calendar Line 12

- 00000 -

Calendar Line 13

- 00000 -

Calendar Line 14

.

- 00000 -

Calendar Line 15

- 00000 -

Calendar Line 16

- 00000 -

Calendar Line 17

- 00000 -

Calendar Line 18

- 00000 -

Calendar Line 19

- 00000 -

Calendar Line 20

- 00000 -

Calendar Line 21

- 00000 -

Calendar Line 22

- 00000 -

Calendar Line 23

- 00000 -

Calendar Line 24

- 00000 -

Calendar Line 25

- 00000 -

Calendar Line 26

- 00000 -

Calendar Line 27

- 00000 -

Calendar Line 28

- 00000 -

Calendar Line 29

- 00000 -

Calendar Line 30

- 00000 -